THE ANCIENT MONUMENTS AND ARCHAEOLOGICAL SITES AND REMAINS ACT, 1958

ACT NO. 24 OF 1958[1]

[28*th August*, 1958.]

An Act to provide for the preservation of ancient and historical monuments and archaeological sites and remains of national importance, for the regulation of archaeological excavations and for the protection of sculptures, carvings and other like objects.

BE it enacted by Parliament in the Ninth Year of the Republic of India as follows:—

PRELIMINARY

1. Short title, extent and commencement.—(*1*) This Act may be called the Ancient Monuments and Archaeological Sites and Remains Act, 1958.

[2][(*2*) It extends to the whole of India.]

(*3*) It shall come into force on such date[3] as the Central Government may, by notification in the Official Gazette, appoint.

2. Definitions.—In this Act, unless the context otherwise requires,—

(*a*) "ancient monument" means any structure, erection or monument, or any tumulus or place of interment, or any cave, rock-sculpture, inscription or monolith, which is of historical, archaeological or artistic interest and which has been in existence for not less than one hundred years, and includes—

(*i*) the remains of an ancient monument,

(*ii*) the site of an ancient monument,

(*iii*) such portion of land adjoining the site of an ancient monument as may be required for fencing or covering in or otherwise preserving such monument, and

(*iv*) the means of access to, and convenient inspection of, an ancient monument;

(*b*) "antiquity" includes—

(*i*) any coin, sculpture, manuscript, epigraph, or other work of art or craftsmanship,

(*ii*) any article, object or thing detached from a building or cave,

(*iii*) any article, object or thing illustrative of science, art, crafts, literature, religion, customs, morals or politics in bygone ages,

(*iv*) any article, object or thing of historical interest, and

---

1. Extended to Goa, Daman and Diu with modifications by Reg. 12 of 1962, S. 3 and Sch. (w.e.f. 22-11-1962). Extended to Dadra and Nagar Haveli by Reg. 6 of 1963, s. 2 and Sch. I (w.e.f. 11-7-1965) and Pondicherry by Reg. 7 of 1963, s. 3 and Sch. I (w.e.f. 1-10-1963).
2. Subs. by Act 52 of 1972, s. 33, for sub-section (*2*) (w.e.f. 5-4-1976).
3. 15th October, 1959, *vide* notification No. S. O. 2307, dated 15th October, 1959, *see* Gazette of India, Extraordinary, Part II, sec. 3(*ii*).

(*v*) any article, object or thing declared by the Central Government, by notification in the Official Gazette, to be an antiquity for the purposes of this Act,

which has been in existence for not less than one hundred years;

(*c*) "archaeological officer" means an officer of the Department of Archaeology of the Government of India not lower in rank than Assistant Superintendent of Archaeology;

(*d*) "archaeological site and remains" means any area which contains or is reasonably believed to contain ruins or relics of historical or archaeological importance which have been in existence for not less than one hundred years, and includes—

(*i*) such portion of land adjoining the area as may be required for fencing or covering in or otherwise preserving it, and

(*ii*) the means of access to, and convenient inspection of, the area;

[1][(*da*) "Authority" means the National Monuments Authority constituted under section 20F;

(*db*) "competent authority" means an officer not below the rank of Director of archaeology or Commissioner of archaeology of the Central or State Government or equivalent rank, specified, by notification in the Official Gazette, as the competent authority by the Central Government to perform functions under this Act:

Provided that the Central Government may, by notification in the Official Gazette, specify different competent authorities for the purpose of sections 20C, 20D and 20E;

(*dc*) "construction" means any erection of a structure or a building, including any addition or extension thereto either vertically or horizontally, but does not include any re-construction, repair and renovation of an existing structure or building, or, construction, maintenance and cleansing of drains and drainage works and of public latrines, urinals and similar conveniences, or, the construction and maintenance of works meant for providing supply of water for public, or, the construction or maintenance, extension, management for supply and distribution of electricity to the public or provision for similar facilities for public;]

(*e*) "Director-General" means the Director-General of Archaeology, and includes any officer authorised by the Central Government to perform the duties of the Director-General;

(*f*) "maintain", with its grammatical variations and cognate expressions, includes the fencing, covering in, repairing, restoring and cleansing of a protected monument, and the doing of any act which may be necessary for the purpose of preserving a protected monument or of securing convenient access thereto;

(*g*) "owner" includes—

(*i*) a joint owner invested with powers of management on behalf of himself and other joint owners and the successor-in-title of any such owner; and

(*ii*) any manager or trustee exercising powers of management and the successor-in-office of any such manager or trustee;

(*h*) "prescribed" means prescribed by rules made under this Act;

[1][(*ha*) "prohibited area" means any area specified or declared to be a prohibited area under section 20A;]

1. Ins. by Act 10 of 2010, s. 2 (w.e.f. 16-6-1992).

(*i*) "protected area" means any archaeological site and remains which is declared to be of national importance by or under this Act;

(*j*) "protected monument" means an ancient monument which is declared to be of national importance by or under this Act;

[1][(*k*) "re-construction" means any erection of a structure or building to its pre-existing structure, having the same horizontal and vertical limits;

(*l*) "regulated area" means any area specified or declared under section 20B;

(*m*) "repair and renovation" means alterations to a pre-existing structure or building, but shall not include construction or re-construction.]

[2]**[2A.** [Construction of references to any law not in force in the State of Jammu and Kashmir*.]—*Omitted by the Jammu and Kashmir Reorganization (Adaptation of Central Laws) Order*, 2020, *vide* notification No. S.O. 1123(E) dated (18-3-2020).]

ANCIENT MONUMENTS AND ARCHAEOLOGICAL SITES AND REMAINS OF NATIONAL IMPORTANCE

3. Certain ancient monuments, etc., deemed to be of national importance.—All ancient and historical monuments and all archaeological sites and remains which have been declared by the Ancient and Historical Monuments and Archaeological Sites and Remains (Declaration of National Importance) Act, 1951 (71 of 1951), or by section 126 of the States Reorganisation Act, 1956 (37 of 1956), to be of national importance shall be deemed to be ancient and historical monuments or archaeological sites and remains declared to be of national importance for the purposes of this Act.

4. Power of Central Government to declare ancient monuments, etc., to be of national importance.—(*1*) Where the Central Government is of opinion that any ancient monument or archaeological site and remains not included in section 3 is of national importance, it may, by notification in the Official Gazette, give two months' notice of its intention to declare such ancient monument or archaeological site and remains to be of national importance; and a copy of every such notification shall be affixed in a conspicuous place near the monument or site and remains, as the case may be.

(*2*) Any person interested in any such ancient monument or archaeological site and remains may, within two months after the issue of the notification, object to the declaration of the monument, or the archaeological site and remains, to be of national importance.

(*3*) On the expiry of the said period of two months, the Central Government may, after considering the objections, if any, received by it, declare by notification in the Official Gazette, the ancient monument or the archaeological site and remains, as the case may be, to be of national importance.

(*4*) A notification published under sub-section (*3*) shall, unless and until it is withdrawn, be conclusive evidence of the fact that the ancient monument or the archaeological site and remains to which it relates is of national importance for the purposes of this Act.

---

1. Ins. by Act 10 of 2010, s. 2 (w.e.f. 16-6-1992).

2. Ins. by Act 52 of 1972, s. 33 (w.e.f. 5-4-1976).

*. *Vide* notification No. S.O. 3912(E), dated 30th October, 2019, this Act is made applicable to the Union territory of Jammu and Kashmir and the Union territory of Ladakh.

[1][**4A. Categorisation and classification in respect of ancient monuments or archaeological sites and remains declared as of national importance under sections 3 and 4.**—(*1*) The Central Government shall, on the recommendation of the Authority, prescribe categories in respect of ancient monuments or archaeological sites and remains declared as of national importance under sections 3 and 4, and while prescribing such categories it shall have regard to the historical, archaeological and architectural value and such other factors as may be relevant for the purpose of such categorisation.

(*2*) The Central Government shall, on the recommendation of the Authority, classify all the ancient monuments or archaeological sites and remains declared as of national importance under sections 3 and 4, in accordance with the categories prescribed under sub-section (*1*) and thereafter make the same available to the public and exhibit the same on its website and also in such other manner as it may deem fit.]

PROTECTED MONUMENTS

5. Acquisition of rights in a protected monument.—(*1*) The Director-General may, with the sanction of the Central Government, purchase, or take a lease of, or accept a gift or bequest of, any protected monument.

(*2*) Where a protected monument is without an owner, the Director-General may, by notification in the Official Gazette, assume the guardianship of the monument.

(*3*) The owner of any protected monument may, by written instrument, constitute the Director-General the guardian of the monument, and the Director-General may, with the sanction of the Central Government, accept such guardianship.

(*4*) When the Director-General has accepted the guardianship of a monument under sub-section (*3*), the owner shall, except as expressly provided in this Act, have the same estate, right, title and interest in and to the monument as if the Director-General had not been constituted a guardian thereof.

(*5*) When the Director-General has accepted the guardianship of a monument under sub-section (*3*), the provisions of this Act relating to agreements executed under section 6 shall apply to the written to agreements executed under the said sub-section.

(*6*) Nothing in this section shall affect the use of any protected monument for customary religious observances.

6. Preservation of protected monument by agreement.—(*1*) The Collector, when so directed by the Central Government, shall propose to the owner of a protected monument to enter into an agreement with the Central Government within a specified period for the maintenance of the monument.

(*2*) An agreement under this section may provide for all or any of the following matters, namely:—

(*a*) the maintenance of the monument;

(*b*) the custody of the monument and the duties of any person who may be employed to watch it;

1. Ins. by Act 10 of 2010, s. 3 (w.e.f. 16-6-1992).

(*c*) the restriction of the owner's right—

(*i*) to use the monument for any purpose,

(*ii*) to charge any fee for entry into, or inspection of, the monument,

(*iii*) to destroy, remove, alter or deface the monument, or

(*iv*) to build on or near the site of the monument;

(*d*) the facilities of access to be permitted to the public or any section thereof or to archaeological officers or to persons deputed by the owner or any archaeological officer or the Collector to inspect or maintain the monument;

(*e*) the notice to be given to the Central Government in case the land on which the monument is situated or any adjoining land is offered for sale by the owner, and the right to be reserved to the Central Government to purchase such land, or any specified portion of such land, at its market value;

(*f*) the payment of any expenses incurred by the owner or by the Central Government in connection with the maintenance of the monument;

(*g*) the proprietary or other rights which are to vest in the Central Government in respect of the monument when any expenses are incurred by the Central Government in connection with the maintenance of the monument;

(*h*) the appointment of an authority to decide any dispute arising out of the agreement; and

(*i*) any matter connected with the maintenance of the monument which is a proper subject of agreement between the owner and the Central Government.

(*3*) The Central Government or the owner may, at any time after the expiration of three years from the date of execution of an agreement under this section, terminate it on giving six months' notice in writing to the other party:

Provided that where the agreement is terminated by the owner, he shall pay to the Central Government the expenses, if any, incurred by it on the maintenance of the monument during the five years immediately preceding the termination of the agreement or, if the agreement has been in force for a shorter period, during the period the agreement was in force.

(*4*) An agreement under this section shall be binding on any person claiming to be the owner of the monument to which it relates, from, through or under a party by whom or on whose behalf the agreement was executed.

7. Owners under disability or not in possession.—(*1*) If the owner of a protected monument is unable, by reason of infancy or other disability, to act for himself, the son legally competent to act on his behalf may exercise the powers conferred upon an owner by section 6.

(*2*) In the case of village property, the headman or other village officer exercising powers of management over such property may exercise the powers conferred upon an owner by section 6.

(*3*) Nothing in this section shall be deemed to empower any person not being of the same religion as the person on whose behalf he is acting to make or execute an agreement relating to a protected monument which or any part of which is periodically used for the religious worship or observances of that religion

8. Application of endowment to repair a protected monument.—(*1*) If any owner or other person competent to enter into an agreement under section 6 for the maintenance of a protected monument refuses or fails to enter into such an agreement, and if any endowment has been created for the purpose of keeping such monument in repair or for that purpose among others, the Central Government may institute a suit in the court of the district judge, or, if the estimated cost of repairing the monument does not exceed one thousand rupees, may make an application to the district judge, for the proper application of such endowment or part thereof.

(*2*) On the hearing of an application under sub-section (*1*), the district judge may summon and examine the owner and any person whose evidence appears to him necessary and may pass an order for the proper application of the endowment or of any part thereof, and any such order may be executed as if it were a decree of a civil court.

9. Failure or refusal to enter into an agreement.—(*1*) If any owner or other person competent to enter into an agreement under section 6 for the maintenance of a protected monument refuses or fails to enter into such an agreement, the Central Government may make an order providing for all or any of the matters specified in sub-section (*2*) of section 6 and such order shall be binding on the owner or such other person and on every person claiming title to the monument from, through or under, the owner or such other person.

(*2*) Where an order made under sub-section (*1*) provides that the monument shall be maintained by the owner or other person competent to enter into an agreement, all reasonable expenses for the maintenance of the monument shall be payable by the Central Government.

(*3*) No order under sub-section (*1*) shall be made unless the owner or other person has been given an opportunity of making a representation in writing against the proposed order.

10. Power to make order prohibiting contravention of agreement under section 6.—(*1*) If the Director-General apprehends that the owner or occupier of a protected monument intends to destroy, remove, alter, deface, imperil or misuse the monument or to build on or near the site thereof in contravention of the terms of an agreement under section 6, the Director-General may, after giving the owner or occupier an opportunity of making a representation in writing, make an order prohibiting any such contravention of the agreement:

Provided that no such opportunity may be given in any case where the Director-General, for reasons to be recorded, is satisfied that it is not expedient or practicable to do so.

(*2*) Any person aggrieved by an order under this section may appeal to the Central Government within such time and in such manner as may be prescribed and the decision of the Central Government shall be final.

11. Enforcement of agreements.—(*1*) If an owner or other person who is bound by an agreement for the maintenance of a monument under section 6 refuses or fails within such reasonable time as the Director-General may fix, to do any act which in the opinion of the Director-General is necessary for the maintenance of the monument, the Director-General may authorise any person to do any such act, and the owner or other person shall be liable to pay the expenses of doing any such act or such portion of the expenses as the owner may be liable to pay under the agreement.

(*2*) If any dispute arises regarding the amount of expenses payable by the owner or other person under sub-section (*1*), it shall be referred to the Central Government whose decision shall be final.

12. Purchasers at certain sales and persons claiming through owner bound by instrument executed by owner.—Every person who purchases, at a sale for arrears of land revenue or any other public demand, any land on which is situated a monument in respect of which any instrument has been executed by the owner for the time being under section 5 or section 6, and every person claiming any title to a monument from, through or under, an owner who executed any such instrument, shall be bound by such instrument.

13. Acquisition of protected monuments.—If the Central Government apprehends that a protected monument is in danger of being destroyed, injured, misused, or allowed to fall into decay, it may acquire the protected monument under the provisions of the Land Acquisition Act, 1894 (1 of 1894), as if the maintenance of the protected monument were a public purpose within the meaning of that Act.

14. Maintenance of certain protected monuments.—(*1*) The Central Government shall maintain every monument which has been acquired under section 13 or in respect of which any of the rights mentioned in section 5 have been acquired.

(*2*) When the Director-General has assumed the guardianship of a monument under section 5, he shall, for the purpose of maintaining such monument, have access to the monument at all reasonable times, by himself and by his agents, subordinates and workmen, for the purpose of inspecting the monument and for the purpose of bringing such materials and doing such acts as he may consider necessary or desirable for the maintenance thereof.

15. Voluntary contributions.—The Director-General may receive voluntary contributions towards the cost of maintaining a protected monument and may give orders as to the management and application of any funds so received by him:

Provided that no contribution received under this section shall be applied to any purpose other than the purpose for which it was contributed.

16. Protection of place of worship from misuse, pollution or desecration.—(*1*) A protected monument maintained by the Central Government under this Act which is a place of worship or shrine shall not be used for any purpose inconsistent with its character.

(*2*) Where the Central Government has acquired a protected monument under section 13, or where the Director-General has purchased, or taken a lease or accepted a gift or bequest or assumed guardianship of, a protected monument under section 5, and such monument or any part thereof is used for religious worship or observances by any community, the Collector shall make due provision for the protection of such monument or part thereof, from pollution or desecration—

(*a*) by prohibiting the entry therein, except in accordance with the conditions prescribed with the concurrence of the persons, if any, in religious charge of the said monument or part thereof, of any person not entitled so to enter by the religious usages of the community by which the monument or part thereof is used, or

(*b*) by taking such other action as he may think necessary in this behalf.

17. Relinquishment of Government rights in a monument.—With the sanction of the Central Government, the Director-General may,—

(*a*) where rights have been acquired by the Director-General in respect of any monument under this Act by virtue of any sale, lease, gift or will, relinquish, by notification in the Official Gazette, the rights so acquired to the person who would for the time being be the owner of the monument if such rights had not been acquired; or

(*b*) relinquish any guardianship of a monument which he has assumed under this Act.

18. Right of access to protected monuments.—Subject to any rules made under this Act, the public shall have a right of access to any protected monument.

PROTECTED AREAS

19. Restictions on enjoyment of property rights in protected areas.—(*1*) No person, including the owner or occupier of a protected area, shall construct any building within the protected area or carry on any mining, quarrying, excavating, blasting or any operation of a like nature in such area, or utilise such area or any part thereof in any other manner without the permission of the Central Government:

Provided that nothing in this sub-section shall be deemed to prohibit the use of any such area or part thereof for purposes of cultivation if such cultivation does not involve the digging of not more than one foot of soil from the surface.

(*2*) The Central Government may, by order, direct that any building constructed by any person within a protected area in contravention of the provisions of sub-section (*1*) shall be removed within a specified period and, if the person refuses or fails to comply with the order, the Collector may cause the building to be removed and the person shall be liable to pay the cost of such removal.

20. Power to acquire a protected area.—If the Central Government is of opinion that any protected area contains an ancient monument or antiquities of national interest and value, it may acquire such area under the provisions of the Land Acquisition Act, 1894 (1 of 1894), as if the acquisition were for a public purpose within the meaning of that Act.

[1][PROHIBITED AND REGULATED AREAS

20A. Declaration of prohibited area and carrying out public work or other works in prohibited area.—Every area, beginning at the limit of the protected area or the protected monument, as the case may be, and extending to a distance of one hundred metres in all directions shall be the prohibited area in respect of such protected area or protected monument:

Provided that the Central Government may, on the recommendation of the Authority, by notification in the Official Gazette, specify an area more than one hundred metres to be the prohibited area having regard to the classification of any protected monument or protected area, as the case may be, under section 4A.

(*2*) Save as otherwise provided in section 20C, no person, other than an archaeological officer, shall carry out any construction in any prohibited area.

(*3*) In a case where the Central Government or the Director-General, as the case may be, is satisfied that—

(*a*) it is necessary or expedient for carrying out such public work or any project essential to the public; or

(*b*) such other work or project, in its opinion, shall not have any substantial adverse impact on the preservation, safety, security of, or, access to, the monument or its immediate surrounding,

---

1. Ins. by Act 10 of 2010, s. 4 (w.e.f. 16-6-1992).

it or he may, notwithstanding anything contained in sub-section (*2*), in exceptional cases and having regard to the public interest, by order and for reasons to be recorded in writing, permit, such public work or project essential to the public or other constructions, to be carried out in a prohibited area:

Provided that any area near any protected monument or its adjoining area declared, during the period beginning on or after the 16th day of June, 1992 but ending before the date on which the Ancient Monuments and Archaeological Sites and Remains (Amendment and Validation) Bill, 2010, receives the assent of the President, as a prohibited area in respect of such protected monument, shall be deemed to be the prohibited area declared in respect of that protected monument in accordance with the provisions of this Act and any permission or licence granted by the Central Government or the Director-General, as the case may be, for the construction within the prohibited area on the basis of the recommendation of the Expert Advisory Committee, shall be deemed to have been validly granted in accordance with the provisions of this Act, as if this section had been in force at all material times:

Provided further that nothing contained in the first proviso shall apply to any permission granted, subsequent to the completion of construction or re-construction of any building or structure in any prohibited area in pursuance of the notification of the Government of India in the Department of Culture (Archaeological Survey of India) number S.O. 1764, dated the 16th June, 1992 issued under rule 34 of the Ancient Monuments and Archaeological Sites and Remains Rules, 1959, or, without having obtained the recommendations of the Committee constituted in pursuance of the order of the Government of India number 24/22/2006-M, dated the 20th July, 2006 (subsequently referred to as the Expert Advisory Committee in orders dated the 27th August, 2008 and the 5th May, 2009).]

[1][(*4*) No permission, referred to in sub-section (*3*), including carrying out any public work or project essential to the public or other constructions, shall be granted in any prohibited area on and after the date on which the Ancient Monuments and Archaeological Sites and Remains (Amendment and Validation) Bill, 2010 receives the assent of the President.]

[2][**20B. Declaration of regulated area in respect of every protected monument**.—Every area, beginning at the limit of prohibited area in respect of every ancient monument and archaeological site and remains, declared as of national importance under sections 3 and 4 and extending to a distance of two hundred metres in all directions shall be the regulated area in respect of every ancient monument and archaeological site and remains:

Provided that the Central Government may, by notification in the Official Gazette, specify an area more than two hundred metres to be the regulated area having regard to the classification of any protected monument or protected area, as the case may be, under section 4A:

Provided further that any area near any protected monument or its adjoining area declared, during the period beginning on or after the 16th day of June, 1992 but ending before the date on which the Ancient Monuments and Archaeological Sites and Remains (Amendment and Validation) Bill, 2010, receives the assent of the President, as a regulated area in respect of such protected monument, shall be deemed to be the regulated area declared in respect of that protected monument in accordance with the provisions of this Act and any permission or licence granted for construction in such regulated area shall, be deemed to have been validly granted in accordance with the provisions of this Act, as if this section had been in force at all material times.]

---

1. Ins. by Act 10 of 2010, s. 5 (w.e.f. 16-6-1992).
2. Ins. by s. 6, *ibid*. (w.e.f. 16-6-1992).

[1][**20C. Application for repair or renovation in prohibited area, or construction or re-construction or repair or renovation in regulated area.**—(*1*) Any person, who owns any building or structure, which existed in a prohibited area before the 16th day of June, 1992, or, which had been subsequently constructed with the approval of the Director-General and desires to carry out any repair or renovation of such building or structure, may make an application to the competent authority for carrying out such repair or renovation, as the case may be.

(*2*) Any person, who owns or possesses any building or structure or land in any regulated area, and desires to carry out any construction or re-construction or repair or renovation of such building or structure on such land, as the case may be, may make an application to the competent authority for carrying out construction or re-construction or repair or renovation, as the case may be.

GRANT OF PERMISSION BY COMPETENT AUTHORITY

20D. Grant of permission by competent authority within regulated area.—(*1*) Every application for grant of permission under section 20C of this Act shall be made to the competent authority in such manner as may be prescribed.

(*2*) The competent authority shall, within fifteen days of the receipt of the application, forward the same to the Authority to consider and intimate impact of such construction (including the impact of large-scale development project, public project and project essential to the public) having regard to the heritage bye-laws relating to the concerned protected monument or protected area, as the case may be:

Provided that the Central Government may prescribe the category of applications in respect of which the permission may be granted under this sub-section and the application which shall be referred to the Authority for its recommendations.

(*3*) The Authority shall, within two months from the date of receipt of application under sub-section (*2*), intimate to the competent authority impact of such construction (including the impact of large-scale development project, public project and project essential to the public).

(*4*) The competent authority shall, within one month of the receipt of intimation from the Authority under sub-section (*3*), either grant permission or refuse the same as so recommended by the Authority.

(*5*) The recommendations of the Authority shall be final.

(*6*) In case the competent authority refuses to grant permission under this section, it shall, by order in writing, after giving an opportunity to the concerned person, intimate such refusal within three months from the date of receipt of the application to the applicant, the Central Government and the Authority.

(*7*) If the competent authority, after grant of the permission under sub-section (*4*) and during the carrying out of the repair or renovation work or re-construction of building or construction referred to in that sub-section, is of the opinion (on the basis of material in his possession or otherwise) that such repair or renovation work or re-construction of building or construction is likely to have an adverse impact on the preservation, safety, security or access to the monument considerably, it may refer the same to the Authority for its recommendations and if so recommended, withdraw the permission granted under sub-section (*4*) if so required:

---

1. Ins. by Act 10 of 2010, s. 7 (w.e.f. 16-6-1992).

Provided that the competent authority may, in exceptional cases, with the approval of the Authority grant permission to the applicant referred to in sub-section (*2*) of section 20C until the heritage bye-laws have been prepared under sub-section (*1*) of section 20E and published under sub-section (*7*) of that section.

(*8*) The Central Government, or the Director-General, as the case may be, shall exhibit, on their website, all the permissions granted or refused under this Act.

20E. Heritage bye-laws.—(*1*) The competent authority, in consultation with Indian National Trust for Arts and Cultural Heritage, being a trust registered under the Indian Trusts Act, 1882 (2 of 1882), or such other expert heritage bodies as may be notified by the Central Government, shall prepare heritage bye-laws in respect of each protected monument and protected area.

(*2*) The heritage bye-laws referred to in sub-section (*1*) shall, in addition to such matters as may be prescribed, include matters relating to heritage controls such as elevations, facades, drainage systems, roads and service infrastructure (including electric poles, water and sewer pipelines).

(*3*) The Central Government shall, by rules, specify the manner of preparation of detailed site plans in respect of each protected area or protected monument or prohibited area or regulated area, the time within which such heritage bye-laws shall be prepared and particulars to be included in each such heritage bye-laws.

(*4*) The competent authority for the purpose of preparation of detailed site plans and heritage bye-laws may appoint such number of experts or consultants as it may deem fit.

(*5*) A copy of each of the heritage bye-laws prepared under sub-section (*1*) shall be forwarded to the Authority for its approval.

(*6*) A copy of the heritage bye-laws as approved by the Authority under sub-section (*5*) shall be laid before each House of Parliament.

(*7*) Each heritage bye-laws shall, be made available by the competent authority to the public, by exhibiting the same on its website and also in such other manner as it may deem fit, immediately after laying the same before each House of Parliament.

NATIONAL MONUMENTS AUTHORITY

20F. Constitution of National Monuments Authority.—(*1*) The Central Government shall, by notification in the Official Gazette, constitute an Authority to be called as the National Monuments Authority.

(*2*) The Authority shall consist of,—

(*a*) a Chairperson, on whole-time basis, to be appointed by the President, having proven experience and expertise in the fields of archaeology, country and town planning, architecture, heritage, conservation-architecture or law;

(*b*) such number of members not exceeding five whole-time members and five part-time members to be appointed, on the recommendation of the Selection Committee referred to in section 20G, by the Central Government, having proven experience and expertise in the fields of archaeology, country and town planning, architecture, heritage, conservation-architecture or law;

(*c*) the Director-General as member, *ex officio*.

RASHTRAPATI BHAVAN
NEW DELHI
January 14, 1961.

Pausa 24, 1882(S)

ORDER

THE GOVERNMENT OF INDIA (TRANSACTION OF BUSINESS) RULES

In exercise of the powers conferred by clause (3) of article 77 of the Constitution and in supersession of all previous rules and orders on the subject, the President hereby makes the following rules for the more convenient transaction of the business of the Government of India: -

1. Short Title.- These rules may be called the Government of India (Transaction of Business) Rules, 1961.

2. Definition.- In these rules, "department" means any of the Ministries, Departments, Secretariats and Offices specified in the First Schedule to the Government of India (Allocation of Business) Rules, 1961.

3. Disposal of Business by Ministries.- Subject to the provisions of these Rules in regard to consultation with other departments and submission of cases to the Prime Minister, the Cabinet and its Committees and the President, all business allotted to a department under the Government of India (Allocation of Business) Rules, 1961, shall be disposed of by, or under the general or special directions of, the Minister-in-charge.

4. Inter-Departmental Consultations.-

(1) When the subject of a case concerns more than one department, no decision be taken or order issued until all such departments have concurred, or, failing such concurrence, a decision thereon has been taken by or under the authority of the Cabinet.

Explanation- Every case in which a decision, if taken in one Department, is likely to affect the transaction of business allotted to another department, shall be deemed to be a case the subject of which concerns more than one department.

(2) Unless the case is fully covered by powers to sanction expenditure or to appropriate or re-appropriate funds, conferred by any general or special orders made by the Ministry of Finance, no department shall, without the previous concurrence of the Ministry of Finance, issue any orders which may-

(a) involve any abandonment of revenue or involve any expenditure for which no provision has been made in the appropriation act;

(b) involve any grant of land or assignment of revenue or concession, grant, lease or licence of mineral or forest rights or a right to water power or any easement or privilege in respect of such concession;

(c) relate to the number or grade of posts, or to the strength of a service, or to the pay or allowances of Government servants or to any other conditions of their service having financial implications; or

(d) otherwise have a financial bearing whether involving expenditure or not;

Provided that no orders of the nature specified in clause (c) shall be issued in respect of the Ministry of Finance without the previous concurrence of the Department of Personnel and Training.

(3) The Ministry of Law shall be consulted on-

(a) proposals for legislation;

(b) the making of rules and orders of a general character in the exercise of a statutory power conferred on the Government; and

(c) the preparation of important contracts to be entered into by the Government.

(4) Unless the case is fully covered by a decision or advice previously given by the Department of Personnel and Training that Department shall be consulted on all matters involving-

(a) the determination of the methods of recruitment and conditions of service of general application to Government servants in civil employment; and

(b) the interpretation of the existing orders of general application relating to such recruitment or conditions of service.

(5) Unless the case is fully covered by the instructions issued or advice given by that Ministry, the Ministry of External Affairs shall be consulted on all matters affecting India's external relations.

5. Requests for Papers.-

(1) The Prime Minister may call for papers from any Department.

(2) The Finance Minister may call for papers from any Department in which financial consideration is involved.

(3) Any Minister may ask to see papers in any other Department if they are related to or required for the consideration of any case before him.

6. Committees of the Cabinet.-

(1) There shall be Standing Committees of the Cabinet as set out in the First Schedule to these Rules with the functions specified therein. The Prime Minister may from time to time amend the Schedule by adding to or reducing the numbers of such Committees or by modifying the functions assigned to them.

(2) Each Standing Committee shall consist of such Ministers as the Prime Minister may from time to time specify.

(3) Subject to the provisions of rule 7, each Standing Committee shall have the power to consider and take decisions on matters referred to it by order of the Minister concerned or by the Cabinet.

(4) Ad hoc Committees of Ministers including Group of Ministers may be appointed by the Cabinet, the Standing Committees of the Cabinet or by the Prime Minister for investigating and reporting to the Cabinet on such matters as may be specified, and, if so authorised by the Cabinet, Standing Committees of the Cabinet or the Prime Minister, for taking decisions on such matters.

(5) To the extent, there is a commonality between the cases enumerated in the Second Schedule and the cases set out in the First Schedule, the Standing Committees of the Cabinet, shall be competent to take a final decision in the matter except in cases where the relevant entries in the First Schedule or the Second Schedule, preclude the Committees from taking such decisions.

(6) Any decision taken by a Standing or Ad hoc Committee may be reviewed by the Cabinet.

(7) No case which concerns more than one Department shall be brought before a Standing or Ad hoc Committee of the Cabinet until all the Departments concerned have been consulted.

7. Submission of Cases to the Cabinet.-

(i) all cases specified in the Second Schedule to these Rules except cases covered by sub-rule (5) of rule 6, shall be brought before the Cabinet:

Provided that no case which concerns more than one Department shall, save in cases of urgency, be brought before the Cabinet until all the Departments concerned have been consulted.

Provided further that no case which falls under entry (h) of the Second Schedule and where specific powers have been delegated to Ministries/ Departments or Public Sector Undertakings under a decision of the Cabinet or a Standing Committee of the Cabinet and duly notified by the concerned Department, shall be brought before the Cabinet.

Provided also that cases pertaining to the implementation of the nuclear doctrine and handling/deployment of the strategic assets, including matters relating to staffing and creation of the assets, shall be brought before the Political Council of the Nuclear Command Authority, headed by the Prime Minister.

(ii) The Prime Minister may from time to time amend the Second Schedule by adding to or reducing the number or class of cases required to be placed before the Cabinet.

8. Submission of Cases to the Prime Minister and the President.-

All cases of the nature specified in the Third Schedule to these Rules shall, before the issue of orders thereon, be submitted to the Prime Minister or to the President or to the Prime Minister and the President, as indicated in that Schedule.

9. Submission of Periodical Returns to the Cabinet.-

Each department shall submit to the Cabinet periodical returns as the Cabinet or the Prime Minister may from time to time require.[1]

10. Submission of Certain Papers to the President.-

The periodical reports and other papers specified in the Fourth Schedule to these Rules shall be submitted to the President for information as early as possible.

11. Responsibility of Departmental Secretaries.-

In each department, the Secretary (which term includes the Special Secretary or Additional Secretary or Joint Secretary in independent charge) shall be the administrative head thereof, and shall be responsible for the proper transaction of business and the careful observance of these rules in that department.

12. Departure from Rules.-

The Prime Minister may, in any case or classes of cases, permit or condone a departure from these rules to the extent he deems necessary.

DR. RAJENDRA PRASAD
PRESIDENT

---

[1] Modified vide order dated 13.01.2025.

THE FIRST SCHEDULE [Rule 6(1)]

STANDING COMMITTEES OF THE CABINET AND THEIR FUNCTIONS: -

Name of the Standing Committee	Functions
1. Appointments Committee of the Cabinet.	(i) To take decisions in respect of appointments specified in Annexure I to the First Schedule to the Government of India (Transaction of Business) Rules, 1961; and to decide upon temporary upgradation of post(s) to the level of Joint Secretary and above (namely, post(s) in the Pay Matrix at the Level 14 and above) initially for a period of two years from the date of upgradation and its further continuation on the upgraded level up to five years from such upgradation on year to year basis and to decide upon temporary downgradation of such post(s) for a specified period; (ii) to take decisions in respect of empanelments specified in Annexure II to the First Schedule to the Government of India (Transaction of Business) Rules, 1961; (iii) to decide all cases of disagreement relating to appointments between the Department or Ministry concerned and the Union Public Service Commission; (iv) to decide cases of extension of tenure, under the Central Staffing Scheme(s) or relevant central tenure norms, of officers belonging to the All India Services and other Group 'A' Services beyond the prescribed limits; (v) to decide cases relating to lateral shift of officers serving on Central deputation; (vi) to decide cases of premature repatriation of officers serving with the Central Government to their parent cadre or Department; (vii) to decide cases relating to inter-cadre deputation or transfer of All India Services Officers; (vii)(a) to decide cases relating to deputation of Group 'A' Officers of Central Government to ex-cadre posts under States / Union territories administration including Public Sector Undertakings / Autonomous Bodies / Statutory Bodies / Universities / Local Bodies etc. under States / Union territories administration; (viii) to decide cases of extension of service beyond the age of superannuation under Fundamental Rule 56(d);

	(ix) to decide all cases of disagreement with the recommendations of the Search-cum-Selection Committee constituted in accordance with the statutory requirements or the relevant instructions of the Department of Personnel and Training in respect of officers of the rank or pay (pay band plus Grade Pay) equivalent to or higher than a Joint Secretary of the Central Government; (x) to consider and decide representations, appeals and memorials from officers of the rank or pay (pay band plus Grade Pay) equivalent to or higher than a Joint Secretary in the Central Government, except from those working in the cadre, against adverse remarks; (xi) to decide all cases of disagreement, including in the order of preference of the Public Enterprises Selection Board panel, between the administrative Ministry or Department concerned and the Public Enterprises Selection Board; (xii) to decide all cases of inter-company transfers of Chairman, Managing Director and functional Directors of Public Sector Undertakings between holding companies and subsidiaries and within the subsidiaries including Memorandum of Understanding signing Public Sector Undertakings; (xiii) to decide all cases relating to intra-company transfer of Managing Director and functional Directors of Public Sector Undertakings including Memorandum of Understanding signing Public Sector Undertakings; and (xiv) to decide cases relating to employment or re-employment of any person, who has attained the age of superannuation, in any Department of the Government of India, any State-owned public corporation, company or enterprise, in a post, appointment to which requires approval of the Appointments Committee of the Cabinet.
2. Cabinet Committee on Accommodation.	(i) to determine the guidelines or rules and terms and conditions to govern out-of-turn allotment of Government accommodation; (ii) to decide upon the allotment of Government accommodation to various categories of non-eligible persons and organisations and the rate of rent to be charged from them; (iii) to consider the question of allotment of accommodation from the General Pool to the Members of Parliament; (iv) to consider proposals regarding shifting of existing Central Government Offices to places outside Delhi and the location of

	new offices in Delhi; and (v) to consider and decide upon the proposals relating to- (a) revision of scales of accommodation to various categories of persons; (b) revision of licence fee for various types of Government accommodation; and (c) other matters like allotment of accommodation to the various categories of Central Government servants from the 'Central Pool' or 'Special Pool'. **[The minutes of the meeting of the Cabinet Committee on Accommodation will be submitted to the Prime Minister for his information before they are issued]**.
3. Cabinet Committee on Economic Affairs.	(i) to review on a continuous basis economic trends, problems and prospects for evolving a consistent and integrated economic policy framework for the country; (ii) to direct and co-ordinate all activities in the economic field requiring policy decisions at the highest level including foreign investment; (iii) to deal with matters relating to fixation of prices of agricultural products and price control in respect of industrial raw materials and products; (iv) to deal with increase in the prices of essential commodities or bulk goods under any form of formal or informal control; (v) to lay down priorities for public sector investment and to consider: (a) proposals for investment of more than one thousand crore rupees including those recommended by the Public Investment Board/Expenditure Finance Committee/Expanded Board of the Railways or any other appraisal fora/ committee except in cases where separate thresholds have been laid down by the Cabinet, Committee of the Cabinet or other competent authority; and (b) proposals recommended by other appraisal fora/Committee such as Public Private Partnership Appraisal Committee beyond the threshold laid down/ approved by the Competent Authority for approval by such fora but does not include proposals involving setting up of new Companies, Autonomous Bodies, Institutions, Special Purpose Vehicles, etc. or creation of posts carrying pay scale or pay band plus Grade Pay equivalent to that of a Joint Secretary to the

	Government of India and higher, which shall continue to be placed before the Cabinet; (vi) to consider cases of increase in the firmed up cost estimates or revised cost estimates due to reasons such as time overrun, changes in scope, under-estimation, etc. in respect of proposals that are required to be placed before the Cabinet Committee on Economic Affairs for which the procedure stipulated in the Second Schedule to the Government of India (Transaction of Business) Rules, 1961, in respect of similar cases will apply; (vii) to deal with industrial licensing policies and proposals including those relating to establishment of Joint Sector Undertakings; (viii) to review the performance of Central Public Sector Enterprises and consider the cases relating to their structural re-organisation or financial restructuring; (ix) to review progress of activities related to rural development including those concerning small and marginal farmers; (x) to review the accomplishments of the Ministries, Agencies and Public Sector Undertakings/other bodies involved in implementation of prioritised schemes or projects; (xi) to consider issues relating to disinvestment and to decide:– (a) the quantum of shares to be transacted, mode of sale and final pricing of the transaction or lay down the principles/ guidelines for such pricing; and (b) the selection of strategic partner/ buyer, terms and conditions of sale in case of the strategic sale. (xii) to decide the price band and final price of sale of shares held by the Government of India in all Central Public Sector Enterprises; Note 1: Matters in respect of functions under sub-paragraph (xii) will, unless modified by the competent authority specified in sub-rule (4) of rule 6, be put up for the approval of the Minister of Finance, the Minister of Road Transport and Highways and the Minister-in-charge of the administrative Ministry concerned with the public sector enterprise whose proposals come for consideration. Note 2: The above composition shall, if modified by the competent authority, be duly notified by the Cabinet Secretariat. Note 3: The above mechanism shall be serviced by the Department of Investment and Public Asset

	Management (DIPAM). (xiii) to consider issues relating to disinvestment including redemption/ retirement/ repatriation of shares held by the Government of India/ Central Government agencies in Multi-State Cooperative Societies; (xiv) to monitor the general price situation in the country and to decide upon appropriate corrective measures including measures relating to prices of essential commodities; (xv) to assess the internal availability of all essential and agricultural commodities and to authorise effective steps; (xvi) to take decisions on export of all essential and agricultural commodities particularly from Food Corporation of India stocks keeping in view the price implications for the domestic market; (xvii) to consider measures required for making the Public Distribution System more efficient and effective and to determine the prices of articles supplied through the System; (xviii) to consider measures necessary for augmenting the supply of requisite commodities for stabilizing the prices including through imports; (xix) to review measures regarding enforcement of the Essential Commodities Act and other related statutory provisions; (xx) to consider and decide on issues pertaining to the World Trade Organization; and (xxi) to consider issues relating to the Unique Identification Authority of India including its organization, plans, policies, programmes, schemes, funding and methodology to be adopted for achieving the objectives of that Authority.
4. Cabinet Committee on Parliamentary Affairs.	(i) To watch the progress of Government business in Parliament and to give such directions as may be necessary from time to time, in order to secure smooth and efficient conduct of such business; (ii) to scrutinise, and to consider the attitude of the Government on non-official Bills and resolutions to be presented to Parliament; Note: The Minister of Parliamentary Affairs, may take a decision in cases, where the recommendation of the concerned Ministry/Department is that the non-official Bill/Resolution may be opposed, or the Members may be persuaded/requested to withdraw the Bill/Resolution, failing which it may be opposed. Decisions so taken by the Minister may be placed before the Cabinet Committee on

	Parliamentary Affairs or if no meeting of the Committee is envisaged, within a reasonable period of time, these may be circulated to the Members of the Committee for ratification. (iii) to review legislations undertaken by State Legislatures from an all-India point of view; and (iv) to consider proposals to summon or prorogue the Houses of Parliament. Note: The Committee shall, unless otherwise decided by the Cabinet Secretary, be serviced by the Ministry of Parliamentary Affairs.
5. Cabinet Committee on Political Affairs.	(i) To deal with problems relating to Centre-State relations; (ii) to consider economic and political issues that have to be judged with a wider perspective; and (iii) to deal with policy matters concerning foreign affairs that do not have external or internal security implications.
6. Cabinet Committee on Security.	(i) to deal with all Defence related issues; (ii) to deal with issues relating to law and order, and internal security; (iii) to deal with policy matters concerning foreign affairs that have internal or external security implications including cases relating to agreements with other countries on security related issues; (iv) to deal with economic and political issues impinging on national security; (v) to review the manpower requirements relating to national security including proposals concerning creation of posts carrying the pay scale or pay band plus Grade Pay equivalent to that of a Joint Secretary to the Government of India and higher, and setting up new structures to deal with security related issues; (vi) to consider all cases- (a) involving capital expenditure of more than rupees one thousand crore- (I) in respect of- (A) the Department of Defence Production; and (B) the Department of Defence Research and Development; (II) in respect of the Capital Works projects, Services

	Capital Acquisition plans, schemes, projects, procurement of security related equipment, non-scaled and new items in respect of Department of Defence; and (b) involving security related expenditure of more than one thousand crore rupees in respect of Departments not included in item (a), except in cases where higher powers for disposal of cases or class of cases have been delegated to the specified authorities; (c) involving capital expenditure of more than two hundred fifty crore rupees in respect of land acquisition by the Department of Defence where land acquisition is undertaken separately; (vii) all matters relating to atomic energy; and (viii) to consider cases of – (I) increase in the firmed up cost estimates or revised cost estimates of schemes, projects, acquisition, or procurement in respect of items covered by entry (vi), for reasons such as time overrun, changes in scope, or under-estimation, to the extent such increase is more than twenty per cent of the original cost estimates already approved by the competent authority; (II) any further increase of more than five per cent in the revised cost estimates referred to in item (i): Provided that no case of revised cost estimate where such revised cost estimate is one thousand crore rupees or less or other cases falling within the powers delegated to other authorities by the Central Government, shall be required to be brought before the Cabinet Committee on Security except in cases, where the Minister-in-charge directs any case to be placed before the Committee: Provided further that any escalation due to increase in statutory levies, exchange rate variation and price escalation envisaged within the original approved project time cycle at the time of approval by the competent authority shall be excluded for determining increase in the cost under this entry.
7. Cabinet Committee on Investment and Growth.	(i) to consider measures to promote investment and growth; (ii) to consider sector specific reforms and other measures aimed at export promotion, import substitution, accelerating capital inflows, etc.; (iii) to consider various measures for improving Ease of Doing

	Business including rationalization and simplification of rules and regulations, etc.; (iv) to consider measures to fast-track requisite approvals and implementation of key ongoing as well as new projects; and (v) to consider any other matter relating to boosting investment and growth.
8. Cabinet Committee on Skill, Employment and Livelihood.	(i) to consider policies, programmes and other measures for employment generation and skill development; (ii) to consider measures aimed at developing skills and enhancing employability of workforce for effectively meeting the emerging requirements of the economy; (iii) identification and removal of gaps between the requirement and availability of skills in different sectors; (iv) to consider measures aimed at increasing workforce participation with particular emphasis on women workforce; (v) to consider measures for expeditious implementation of employment generation and skill development initiatives by the Ministries/Departments and to periodically review the progress in this regard; and (vi) to consider any other matter relating to employment generation and skill development.

---

(5) समय-समय पर संशोधित अधिनियम के अधीन विद्युत मंत्रालय द्वारा यथा अधिसूचित गैर-जीवाश्म ऊर्जा उपभोग या विनिर्दिष्ट ऊर्जा उपभोग के उपयोग जैसे किसी भी अन्य लक्ष्य को पूरा करने के लिए भी इकाईयां अपेक्षित होंगी;

(6) भारतीय कार्बन बाजार के लिए राष्ट्रीय संचालन समिति की सिफारिश के आधार पर, ऐसी बाध्यकारी संस्थाओं के लिए निर्धारित लक्ष्य से अधिक ग्रीनहाउस गैसों के उत्सर्जन की तीव्रता को कम करने में उनकी उपलब्धि के लिए बाध्यकारी संस्थाओं को कार्बन क्रेडिट प्रमाणपत्र जारी किए जाएंगे;

(7) जिन बाध्यकारी संस्थाओं ने ग्रीनहाउस गैसों में अपनी लक्षित कमी को प्राप्त नहीं किया, वे भारतीय कार्बन बाजार से कार्बन क्रेडिट प्रमाण पत्र खरीदकर कमी को पूरा करेंगी;

12. **विस्तृत प्रक्रिया-** (1) भारतीय कार्बन बाजार के लिए राष्ट्रीय संचालन समिति और अन्य प्राधिकरण इस योजना के अनुसार भारतीय कार्बन बाजार के संचालन के लिए विस्तृत प्रक्रिया विकसित करेंगे।

(2) विस्तृत प्रक्रिया में निम्नलिखित शामिल होंगे, अर्थात्: -

(i) कार्बन क्रेडिट प्रमाणपत्र जारी करने के लिए मानदंड;

(ii) कार्बन क्रेडिट प्रमाणपत्रों की वैधता;

(iii) कार्बन क्रेडिट प्रमाण पत्र की न्यूनतम और स्थगन मूल्य;

(iv) प्रस्तुत करने के लिए आवश्यकता, प्रारूप और समयसीमा;

(v) निगरानी, रिपोर्टिंग और सत्यापन; और

(vi) कोई अन्य संबंधित और अनुषंगिक मामले।

13. **निदेश जारी करने का अधिकार-** ब्यूरो, समय-समय पर, केंद्रीय सरकार के अनुमोदन से रजिस्ट्रीकृत इकाईयों को ऐसे निदेश और आदेश जारी कर सकता है, जो इस योजना के कार्यान्वयन के लिए उपयुक्त समझें जाए।

[फा. सं. 21/6 /2022- ईसी]

अजय तिवारी, अपर सचिव

MINISTRY OF POWER

NOTIFICATION

New Delhi, the 28th June, 2023

S.O. 2825(E).—In exercise of the powers conferred by clause (w) of section 14 of the Energy Conservation Act, 2001 (52 of 2001) the Central Government, in consultation with the Bureau, hereby specifies the following Scheme, namely:-

1. Short title and commencement. – (1) This Scheme may be called the Carbon Credit Trading Scheme, 2023.

(2) It shall come into force on the date of its publication in the Official Gazette.

2. **Definitions.-** (1) In this Scheme, unless the context otherwise requires,-

(a) **"Act"** means the Energy Conservation Act, 2001 (52 of 2001);

(b) **"accredited carbon verification agency"** means an agency accredited by the Bureau to carry out verification activities under the carbon credit trading scheme;

(c) **"carbon credit"** means a value assigned to a reduction or removal or avoidance of greenhouse gas emissions achieved and is equivalent to one ton of carbon dioxide equivalent (tCO_2e);

(d) **"carbon credit certificate"** shall have the same meaning as assigned to it in clause (da) of section 2 of the Act;

(e) **"carbon credit trading scheme"** shall have the same meaning as assigned to it in clause (db) of section 2 of the Act;

(f) **"Commission"** means the Central Electricity Regulatory Commission referred to in sub-section (1) of section 76 of the Electricity Act, 2003 (36 of 2003);

(g) **"compliance mechanism"** means a mechanism under this Scheme where the obligated entities shall comply with the greenhouse gas emission norms as may be notified by the Central Government;

(h) **"greenhouse gases"** means those gaseous constituents of the atmosphere, both natural and anthropogenic, that absorb and re-emit infrared radiation and the expression greenhouse gases include, but not limited to, carbon dioxide (CO_2), methane (CH_4), nitrous oxide (N_2O), hydrochlorofluorocarbons (HCFCs), hydrofluorocarbons (HFCs), perfluorocarbons (PFCs), and sulfur hexafluoride (SF_6);

(i) **"Indian carbon market framework"** means a national framework established with an objective to reduce or remove or avoid the greenhouse gases emissions from the Indian economy by pricing the greenhouse gases emission through trading of the carbon credit certificates;

(j) **"meta-registry"** means the national greenhouse gas registry that will serve the following purposes, namely: -

(i) data management including Market Based Mechanisms and National Inventory Management Systems; and

(ii) transaction with features of establishing the linkages with any national or international registry of any market-based mechanism;

(k) **"non-obligated entities"** means 'registered entities' that can purchase the carbon credit certificates on voluntary basis;

(l) **"obligated entities"** means 'registered entities' that are notified under the compliance mechanism;

(m) **"power exchange"** means an electronic trading platform as defined under sub-clause (as) of clause (1) of regulation 2 of the Central Electricity Regulatory Commission (Power Market) Regulations, 2021 published in the Gazette of India vide L-1/257/2020/CERC dated 15th February, 2021;

(n) **"registered entity"** shall have the same meaning as assigned to it in clause (qa) of the section 2 of the Act;

(o) **"Registry"** means the agency designated as such to perform such functions as defined in this framework in respect of carbon credit trading scheme;

(2) The words and expressions used herein and not defined but defined in the Act, the Environment Protection Act, 1986 (29 of 1986) and the Electricity Act, 2003 (36 of 2003) shall have the meanings respectively assigned to them in those Acts.

3. National Steering Committee for Indian Carbon Market. -(1) The Central Government shall constitute the National Steering Committee for Indian carbon market.

(2) The governance of the Indian carbon market and direct oversight of its functioning shall vest in the National Steering Committee for Indian carbon market.

(3) The National Steering Committee for Indian carbon market shall consist of the following members, namely: -

(a) Secretary, Ministry of Power- *ex-officio*-Chairperson;

(b) Secretary, Ministry of Environment, Forest and Climate Change – *ex-officio* Co-chairperson;

(c) Joint Secretary to the Government of India or above from the Ministry of Finance – *ex-officio Member;*

(d) Joint Secretary to the Government of India or above from Niti Aayog – *ex-officio Member*;

(e) Joint Secretary to the Government of India or above from the Ministry of Power – *ex-officio Member;*

(f) Joint Secretary to the Government of India or above from the Ministry of Environment, Forest and Climate Change- *ex-officio Member*;

(g) Joint Secretary to the Government of India or above from the Ministry of New and Renewable Energy – *ex-officio Member;*

(h) Joint Secretary to the Government of India or above from the Ministry of Steel – *ex-officio Member;*

(i) Joint Secretary to the Government of India or above from the Ministry of Coal – *ex-officio Member;*

(j) Joint Secretary to the Government of India or above from the Ministry of Chemicals and Fertilizers – *ex-officio Member;*

(k) Joint Secretary to the Government of India or above from the Ministry of Petroleum and Natural Gas – *ex-officio Member;*

(l) Joint Secretary to the Government of India or above from the Ministry of Agriculture and Farmers Welfare – *ex-officio Member;*

(m) two Members – Principal Secretary from the Department of Environment of respective State Government representing the States as nominated by the Central Government– *ex-officio– Members;*

(n) two expert Members – coopted by the National Steering Committee who have knowledge in the areas of emissions, carbon trading, climate change, environment and energy – *Members;*

(o) Chairperson, the Central Electricity Authority – Member;

(p) Chairman and Managing Director, the Grid Controller of India Limited –Member;

(q) any other Members not exceeding three as coopted by the National Steering Committee for Indian carbon market– Member;

(r) the Director General, Bureau of Energy Efficiency – Member - Secretary;

4. Functions of National Steering Committee. -(1) The National Steering Committee shall discharge following functions, namely: -

(a) Recommend to Bureau for the formulation and finalisation of procedures for institutionalizing the Indian carbon market;

(b) recommend to Bureau for the formulation and finalisation of the rules and regulations for the functions of Indian carbon market;

(c) recommend to Bureau for the formulation of specific greenhouse gases emission targets for the obligated entities;

(d) recommend to Bureau for the formulation and finalisation of guidelines regarding trading of carbon credit certificates outside India;

(e) recommend to Bureau to issue carbon credit certificate;

(f) recommend to Bureau for the development of the process or conditions for crediting period or renewal or expiry of carbon credit certificate;

(g) to monitor the functions of Indian carbon market;

(h) recommend to Bureau to constitute any Committee or Working group as required in connection with Indian carbon market; and

(i) any other functions assigned to it by the Central Government.

(2) The Chairperson shall call the meeting at least once in a quarter of every year.

5. Bureau as administrator and its functions. -(1) The Bureau shall be the Administrator for the Indian carbon market.

(2) As the administrator, the Bureau shall discharge the following functions, namely: -

(a) to identify sectors and potential for reduction of greenhouse gases emissions in such sectors and recommend to the Ministry of Power to include such sectors in Indian carbon market;

(b) to develop trajectory and targets for the entities under compliance mechanism;

(c) to issue the carbon credits certificate based on the recommendation of the National Steering Committee for Indian carbon market and subsequent approval of the Central Government;

(d) to develop market stability mechanism for carbon credits;

(e) to develop the procedure for accreditation and functions of accredited carbon verification agency;

(f) to accredit the agencies in accordance with the approved procedure for accredited carbon verification agency;

(g) to determine, the fees and charges payable by the registered entities with the approval of Central Government, for the purposes of meeting the cost and expense towards the implementation of this Scheme;

(h) to develop the process or conditions for crediting period or renewal or expiry of carbon credit certificates;

(i) to develop data submission formats, forms for effective functioning of Indian carbon market;

(j) to undertake capacity building activities for the stakeholders;

(k) to develop and maintain the information technology infrastructure including the user guidance platform required for Indian carbon market;

(l) to maintain secure database with all security protocols as approved by the Central Government;

(m) to constitute any Committee or working group as recommended by the National Steering Committee for Indian carbon market; and

(n) any other functions assigned to it by the Central Government.

6. Registry and its Functions. -(1) The Grid Controller of India Limited shall be the registry for the Indian carbon market.

(2) The Registry shall discharge the following functions, in the manner, as may be determined by the Central Government from time to time: -

(a) to comply with the directions issued by the Bureau from time to time;

(b) to undertake registration of obligated or non-obligated entities;

(c) to maintain secure database with all security protocols;

(d) to maintain records of all transactions;

(e) to share the transaction records with Power Exchange and Bureau;

(f) to assist in development of information technology platform for maintaining database of carbon credit certificates;

(g) to function as meta-registry for India;

(h) to establish linkages with other National or International registries as approved by the Central Government; and

(i) any other functions assigned to it by the Bureau.

7. Commission as Regulator for trading activities under Indian Carbon Market. -(1) The Central Electricity Regulatory Commission shall be the regulator for the trading activities under the Indian Carbon Market.

(2) The Central Electricity Regulatory Commission as a regulator to Indian Carbon Market shall perform the following, namely: -

(a) to regulate matters relating to trading of carbon credit certificates;

(b) to safeguard interest of both sellers and buyers;

(c) to regulate frequency of carbon credit certificates trading; and

(d) to provide market oversight and take necessary preventive and corrective actions to prevent fraud or mistrust.

8. Technical Committee and its Functions. -(1) The Bureau shall constitute, one or more Technical Committees for different areas as required under compliance mechanism for the purposes of this Scheme.

(2) Each Technical Committee shall be chaired by a member who is an expert and shall possess such eligibility and experience in respective sector as may be determined by the Bureau.

(3) Each Technical Committee shall consist of other members as may be required by the Bureau.

(4) Each Technical Committee shall perform functions for the purposes of this Scheme.

(5) The Technical Committee shall make its recommendations to the Bureau, in respect of the matters assigned to it.

9. Accredited Carbon Verification Agency. -(1) The Bureau with prior approval of the Central Government shall determine the procedure including eligibility criteria for accreditation of any agency to function as accredited carbon verification agency based on the recommendation of the National Steering Committee for Indian carbon market.

(2) The Accredited carbon verification agency shall perform functions for the purposes of this Scheme as determined by the Bureau from time to time.

10. Trading of carbon credit certificates. - (1) The Commission shall register the power exchanges and approve the carbon credit certificate trading in the Indian carbon market, from time to time;

(2) The power exchange shall seek approval of the Commission for their respective bylaws and rules for trading of certificates in the power exchange.

(3) The power exchanges shall perform functions regarding trading of carbon credit certificates, in accordance with the regulations notified by the Commission.

11. Compliance Mechanism. -(1) The sectors and the obligated entities to be covered under the compliance mechanism shall be decided by the Ministry of Power based on recommendations of the Bureau;

(2) The Bureau shall undertake studies for the sectors or obligated entities as decided in sub-paragraph (1) for recommending the targets in terms of ton of carbon dioxide equivalent (tCO_2e) per unit of equivalent product after taking into account all relevant aspects including available technologies and likely cost of their implementation;

(3) The Ministry of Power, after duly considering the recommendations of Bureau and National Steering Committee for Indian carbon market, shall recommend the notification of greenhouse gases emission intensity targets to the Ministry of Environment, Forest and Climate Change for notification under the Environment Protection Act, 1986;

(4) The obligated entities shall be required to achieve greenhouse gases emission intensity in accordance with the targets as may be notified by the Ministry of Environment, Forest and Climate Change;

(5) The obligated entities shall also be required to meet any other targets such as use of non-fossil energy consumption or specific energy consumption as may be notified by the Ministry of Power under the Act as amended from time to time;

(6) The obligated entities shall be issued carbon credit certificates for their achievement in reducing the greenhouse gases emission intensity exceeding the target set for such obligated entities, based on the recommendation of National Steering Committee for Indian carbon market;

(7) The obligated entities who did not achieve their targeted reduction in greenhouse gases emission intensity shall meet shortfall by purchasing carbon credits certificates from Indian carbon market;

12. Detailed procedure. -(1)The National Steering Committee for Indian carbon market and other authorities shall develop the detailed procedure for operationalising the Indian carbon market, in accordance with this Scheme.

(2) The detailed procedure shall contain the following, namely: -

(i) criteria for issuance of carbon credit certificates;

(ii) validity of carbon credit certificates;

(iii) floor and forbearance price of carbon credit certificates;

(iv) requirement, format and timeline for submissions;

(v) monitoring, reporting and verification; and

(vi) any other related and incidental matters.

13. Power to issue directions. -The Bureau may, from time to time, issue such directions and orders to the registered entities, with the approval of the Central Government, as considered appropriate for the implementation of this Scheme.

[F. No. 21/6/2022-EC]

AJAY TEWARI, Addl. Secy.

Uploaded by Dte. of Printing at Government of India Press, Ring Road, Mayapuri, New Delhi-110064
and Published by the Controller of Publications, Delhi-110054.